6.2.2 C1 Exception Zones

Refer to Article 1.1.2.3 - Exception Zones and Exception Zone Schedules

6.2.2.1	Exception: C1-1	Map # 10	By-law:
In a C1-1 zone the permitted **uses** and applicable regulations shall be as specified for a C1 zone except that the following **uses**/regulations shall apply:			
Uses Not Permitted			
6.2.2.1.1	(1) **Veterinary Clinic** (2) **Take-out Restaurant** (3) **Restaurant**		
Regulation			
6.2.2.1.2	Maximum **gross floor area - non-residential**		1 255 m^2

6.2.2.2	Exception: C1-2	Map #	By-law: 0225-2014, *deleted by 0111-2019/LPAT Order 2021 March 09*

6.2.2.3	Exception: C1-3	Map # 23	By-law:
In a C1-3 zone the permitted **uses** and applicable regulations shall be as specified for a C1 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.2.3.1	(1) **Motor Vehicle Rental Facility**		

6.2.2.4	Exception: C1-4	Map #	By-law: *deleted by 0111-2019/ LPAT Order 2021 March 09*

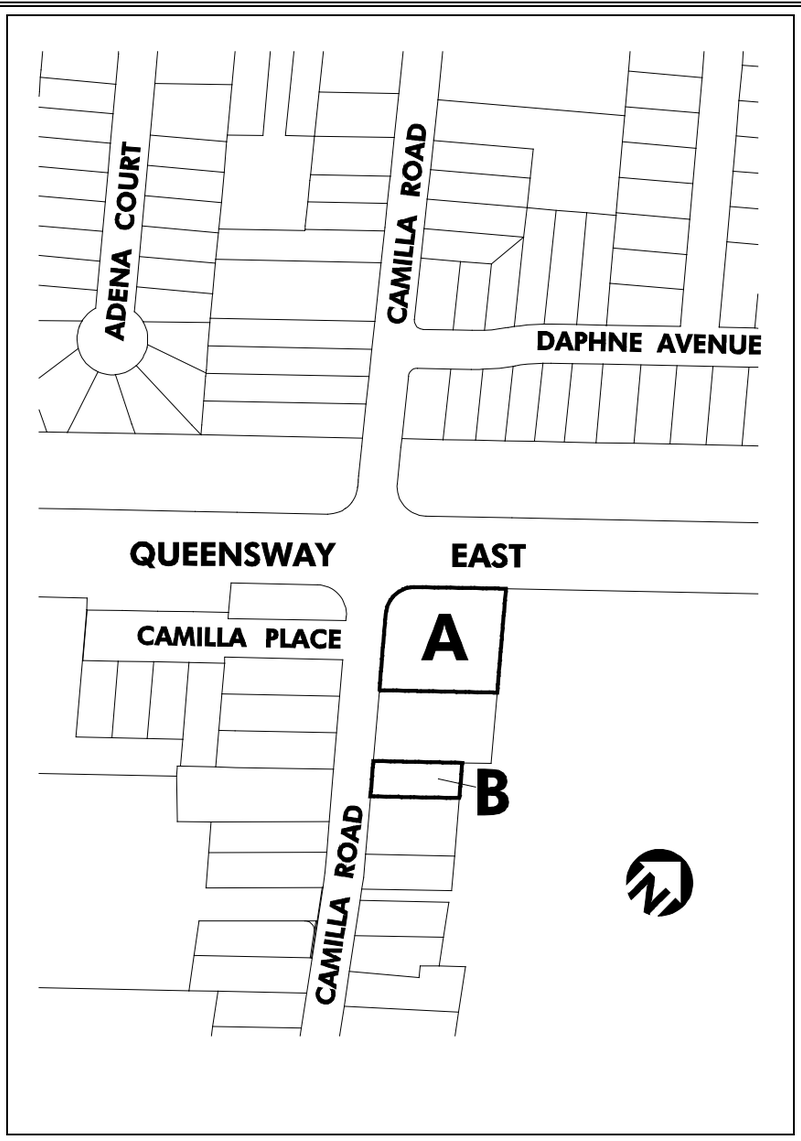
6.2.2.5	Exception: C1-5	Map # 21	By-law: 0111-2019/ LPAT Order 2021 March 09
In a C1-5 zone the applicable regulations shall be as specified for a C1 zone except that the following **uses**/regulations shall apply:			
Permitted Uses			
6.2.2.5.1	Lands zoned C1-5 shall only be used for the following: (1) **Service Establishment** (2) Pharmacy (3) Convenience Store (4) Video Store (5) **Medical Office**		
Regulations			
6.2.2.5.2	Minimum **front yard**		3.0 m
6.2.2.5.3	Minimum **exterior side yard**		3.0 m
6.2.2.5.4	Minimum **interior side yard**		3.0 m
6.2.2.5.5	Minimum **rear yard**		3.0 m
6.2.2.5.6	Maximum **height**		1 **storey**

6.2.2.6	Exception: C1-6	Map #	By-law: *deleted by 0111-2019/ LPAT Order 2021 March 09*

6.2.2.7	Exception: C1-7	Map # 14	By-law: 0379-2009
In a C1-7 zone the applicable regulations shall be as specified for a C1 zone except that the following **uses**/regulations shall apply:			
Permitted Uses - Area A			
6.2.2.7.1	Lands zoned C1-7 shall only be used for the following: (1) Food Store (2) **Garden Centre** (3) One Apartment **Dwelling Unit** (4) Cold Storage Room		
Permitted Uses - Area B			
6.2.2.7.2	Only the following **accessory uses** shall be permitted: (1) Parking required for Area A (2) **Garage**		
Regulations - Area A			
6.2.2.7.3	Maximum **gross floor area - non-residential**		1 162 m^2
6.2.2.7.4	Minimum **front yard**		23.0 m
6.2.2.7.5	Minimum **exterior side yard**		3.5 m
6.2.2.7.6	Minimum **interior side yard**		2.0 m
6.2.2.7.7	Minimum **rear yard**		1.3 m

Exception C1-7 continued on next page

6.2.2.7	Exception: C1-7	Map # 14	By-law: 0379-2009
Exception C1-7 continued from previous page			
6.2.2.7.8	Notwithstanding Sentence 6.2.2.7.7 of this Exception, the maximum roof area which may encroach into a **rear yard**		100 m^2
6.2.2.7.9	Required **parking spaces**		65
6.2.2.7.10	Maximum area used for outdoor display and sales accessory to a **garden centre**		80 m^2
6.2.2.7.11	"Food Store" may include accessory thereto the sale of food prepared on the premises without seating for the consumption of food on the premises		
6.2.2.7.11a	Maximum number of required **parking spaces** in Sentence 6.2.2.7.9 that may be provided in Area B		23
Regulations - Area B			
6.2.2.7.12	Maximum **gross floor area - non-residential**		100 m^2
6.2.2.7.13	Minimum **front yard**		22.5 m
6.2.2.7.14	Minimum **interior side yard**		1.5 m
6.2.2.7.15	Minimum **rear yard**		1.8 m
6.2.2.7.16	Required **parking spaces**		23
Regulations - Areas A and B			
6.2.2.7.17	Areas A and B shall be located as identified on Schedule C1-7 of this Exception		



Schedule C1-7
Map 14

6.2.2.8	Exception: C1-8	Map # 20	By-law: 0174-2015
In a C1-8 zone the permitted **uses** and applicable regulations shall be as specified for a C1 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.2.8.1	(1) **Gas Bar**		

6.2.2.9	Exception: C1-9	Map #	By-law: *deleted by 0111-2019/ LPAT Order 2021 March 09*

6.2.2.10	Exception: C1-10	Map # 46E	By-law:
In a C1-10 zone the permitted **uses** and applicable regulations shall be as specified for a C1 zone except that the following **uses**/regulations shall apply:			
Regulations			
6.2.2.10.1	Maximum **gross floor area - non-residential**		585 m^2
6.2.2.10.2	Minimum **front yard**		8.0 m
6.2.2.10.3	Minimum **interior side yard** - easterly side		3.5 m
6.2.2.10.4	Minimum **interior side yard** - westerly side		3.0 m
6.2.2.10.5	Minimum **rear yard**		3.0 m
6.2.2.10.6	Maximum **height**		1 **storey**

6.2.2.11	Exception: C1-11	Map # 25	By-law:
In a C1-11 zone the applicable regulations shall be as specified for a C1 zone except that the following **uses**/regulations shall apply:			
Permitted Uses			
6.2.2.11.1	Lands zoned C1-11 shall only be used for the following: (1) **Motor Vehicle Service Station** (2) **Gas Bar** (3) Dry-cleaning Establishment (4) Convenience Store (5) Shoe Repair Shop (6) Video Rental (7) Bank machine located within a convenience store (8) Photography Studio (9) **Restaurant**		
Regulations			
6.2.2.11.2	Maximum number of **buildings** or **structures**, not including a detached canopy		2
6.2.2.11.3	Maximum **gross floor area - non-residential**		570 m^2
6.2.2.11.4	Maximum **gross floor area - non-residential** of all **buildings** or **structures** used for a **motor vehicle service station**		240 m^2

Exception C1-11 continued on next page

6.2.2.11	Exception: C1-11	Map # 25	By-law:
Exception C1-11 continued from previous page			
6.2.2.11.5	Maximum **gross floor area - non-residential** of all **buildings** or **structures** used for a dry-cleaning establishment, convenience store, shoe repair shop, video rental, bank machine, photography studio or **restaurant**, or any combination thereof		330 m^2
6.2.2.11.6	Notwithstanding Sentence 6.2.2.11.5 of this Exception, the maximum **gross floor area - non-residential** used for a **restaurant**		100 m^2
6.2.2.11.7	The **gross floor area - non-residential** of any **use** permitted under Sentence 6.2.2.11.1 of this Exception, other than a **motor vehicle service station**, shall comply with the following: (1) no **use** shall have a **gross floor area - non-residential** of less than 50 m^2 (2) only one (1) **use** may have a minimum **gross floor area - non-residential** of 50 m^2 (3) at least one (1) **use** shall have a minimum **gross floor area - non-residential** of 100 m^2		
6.2.2.11.8	The **lot line** abutting Glen Erin Drive shall be deemed to be the **front lot line**		
6.2.2.11.9	Minimum **interior side yard**		15.0 m
6.2.2.11.10	Minimum **rear yard**		7.5 m
6.2.2.11.11	No **restaurant** shall be located closer than 35.0 m to a Residential Zone		

6.2.2.12	Exception: C1-12	Map # 25, 32	By-law: 0217-2023
In a C1-12 zone the permitted **uses** and applicable regulations shall be as specified for a C1 zone except that the following **uses**/regulations shall apply:			
Uses Not Permitted			
6.2.2.12.1	(1) **Place of Religious Assembly** (2) **Private Club** (3) **Restaurant**		
Regulations			
6.2.2.12.2	*deleted*		
6.2.2.12.3	Minimum depth of a **landscaped buffer** abutting the **rear lot line**		12.0 m
6.2.2.12.4	The **lot line** abutting Burnhamthorpe Road West shall be deemed to be the **front lot line**		
6.2.2.12.5	Minimum **front yard**		2.0 m
6.2.2.12.6	Minimum **interior** and **exterior side yards**		2.0 m
6.2.2.12.7	Minimum **rear yard**		27.0 m
6.2.2.12.8	Minimum **rear yard** abutting a RM5 zone		30.5 m

6.2.2.13	Exception: C1-13	Map # 45E	By-law: 0018-2015, 0180-2021

In a C1-13 zone the applicable regulations shall be as specified for a C1 zone except that the following **uses**/regulations shall apply:

Permitted Uses		
6.2.2.13.1	Lands zoned C1-13 shall only be used for the following: (1) **Existing motor vehicle service station** (2) **Existing detached dwelling** (3) **Retail store** in an **existing detached dwelling** (4) A **dwelling unit** located above a **retail store** in an **existing detached dwelling**	
Use Not Permitted		
6.2.2.13.2	(1) A drive-through accessory to a **take-out restaurant** within a **convenience retail and service kiosk**	
Regulations		
6.2.2.13.3	The regulations of Sentence 3.1.1.7.1 contained in Article 3.1.1.7 of this By-law shall not apply	
6.2.2.13.4	Maximum number of **dwelling units** located above a **retail store** in an **existing detached dwelling**	1

6.2.2.14	Exception: C1-14	Map # 57	By-law: 0111-2019/ LPAT Order 2021 March 09, 0217-2023

In a C1-14 zone the permitted **uses** and applicable regulations shall be as specified for a C1 zone except that the following **uses**/regulations shall apply:

Additional Permitted Use		
6.2.2.14.1	(1) *deleted* (2) **Convenience Restaurant** (3) *deleted*	
Uses Not Permitted		
6.2.2.14.2	(1) **Private Club** (2) **Place of Religious Assembly**	
Regulations		
6.2.2.14.3	The **lot line** abutting Erin Centre Boulevard shall be deemed to be the **front lot line**	
6.2.2.14.4	Maximum **front yard**	16.0 m
6.2.2.14.5	Maximum **exterior side yard**	16.0 m
6.2.2.14.6	Minimum **interior side yard**	6.0 m
6.2.2.14.7	Minimum **rear yard**	6.0 m

6.2.2.15	Exception: C1-15	Map # 14	By-law: 0227-2008, 0212-2015, 0111-2019/ LPAT Order 2021 March 09, 0217-2023, 0199-2024
In a C1-15 zone the permitted **uses** and applicable regulations shall be as specified for a C1 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.2.15.1	*deleted*		
Regulations			
6.2.2.15.2	Maximum **gross floor area - non-residential**		2 650 m^2
6.2.2.15.3	Maximum area used for an outdoor patio accessory to a **restaurant**		60 m^2
6.2.2.15.4	Maximum area of an accessory outdoor garden centre		55 m^2
6.2.2.15.5	An outdoor patio accessory to a **restaurant** shall not be permitted between a **building** and a **lot line** abutting Hurontario St.		
6.2.2.15.6	*deleted*		

6.2.2.16	Exception: C1-16	Map # 37W	By-law: 0217-2023
In a C1-16 zone the permitted **uses** and applicable regulations shall be as specified for a C1 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.2.16.1	*deleted*		
Regulation			
6.2.2.16.2	Maximum number of outdoor patios accessory to a **restaurant**		1

6.2.2.17	Exception: C1-17	Map #	By-law: *deleted by 0217-2023*

6.2.2.18	Exception: C1-18	Map # 29	By-law: 0251-2009, 0379-2009, 0212-2015, 0111-2019/LPAT Order 2021 March 09, 0217-2023
In a C1-18 zone the permitted **uses** and applicable regulations shall be as specified for a C1 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.2.18.1	(1) **Commercial School**		
Regulations			
6.2.2.18.2	*deleted*		
6.2.2.18.3	The provisions contained in Subsection 2.1.14 of this By-law shall not apply		
6.2.2.18.4	Maximum **gross floor area - non-residential**		2 770 m^2
6.2.2.18.5	Maximum **gross floor area - non-residential** of a **restaurant**		500 m^2
6.2.2.18.6	Minimum depth of a **landscaped buffer** measured from the **lot line** of a B zone		0.0 m
6.2.2.18.7	Minimum number of off-street **loading spaces** when the **gross floor area - non-residential** of a **building** is greater than 250 m^2 but less than or equal to 2 770 m^2		1
6.2.2.18.8	For the purpose of this Exception, a **commercial school** shall include a music school, a dance school, a martial arts school and tutoring		

6.2.2.19	Exception: C1-19	Map # 06	By-law: 0325-2008
In a C1-19 zone the permitted **uses** and applicable regulations shall be as specified for a C1 zone except that the following **uses**/regulations shall apply:			
Regulations			
6.2.2.19.1	Minimum required **parking spaces**		8
6.2.2.19.2	Minimum width of an **aisle** - north easterly side		2.5 m
6.2.2.19.3	Minimum width of an **aisle** - south westerly side		6.0 m
6.2.2.19.4	Minimum depth of a **landscaped buffer** abutting Alexandra Avenue		1.2 m
6.2.2.19.5	Minimum depth of a **landscaped buffer** abutting Atwater Avenue		2.0 m

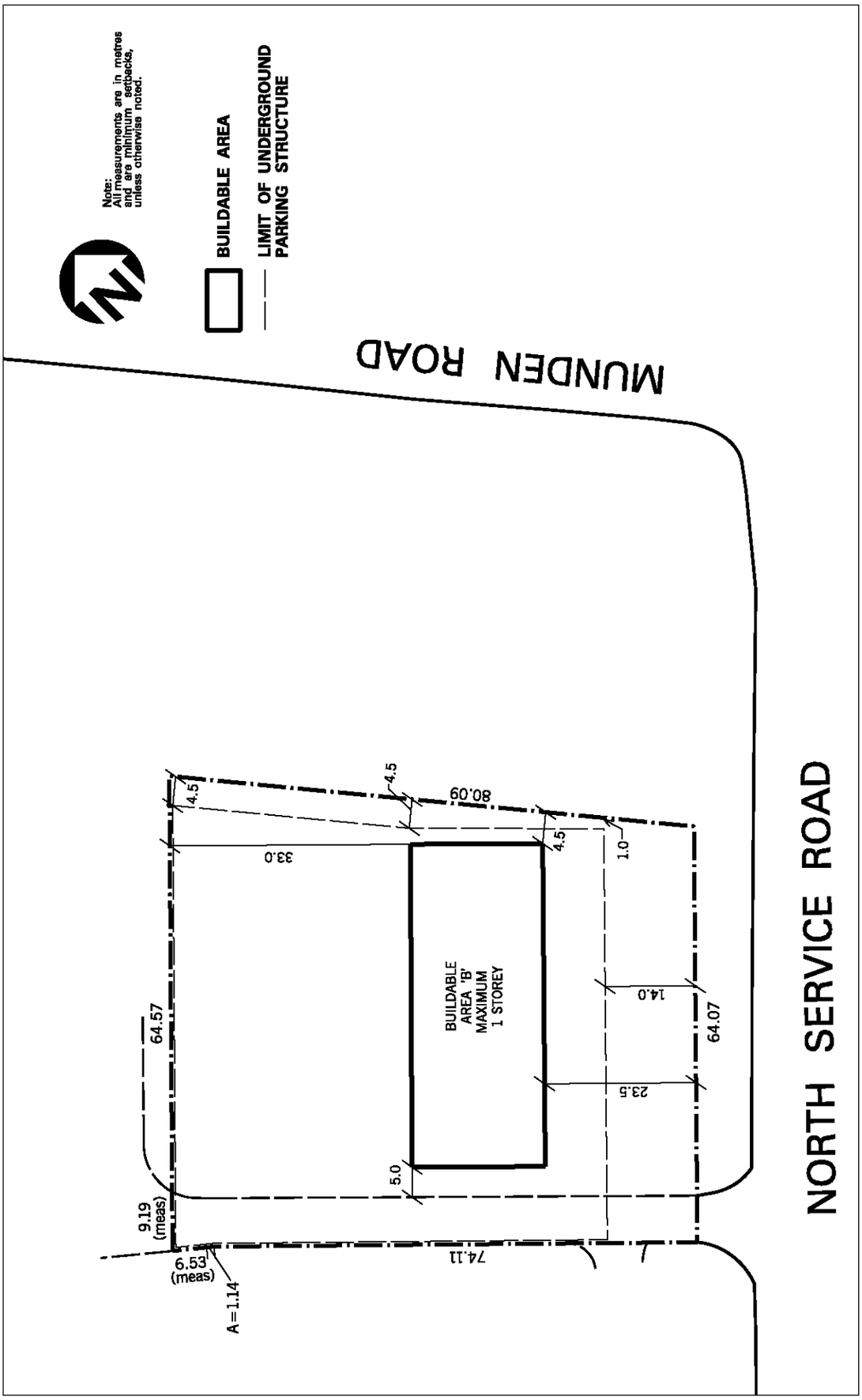
6.2.2.20	Exception: C1-20	Map # 37E	By-law: 0454-2007, 0217-2023
In a C1-20 zone the permitted **uses** and applicable regulations shall be as specified for a C1 zone except that the following **uses**/regulations shall apply:			
Use Not Permitted			
6.2.2.20.1	(1) Laundromat		
Regulations			
6.2.2.20.2	*deleted*		
6.2.2.20.3	Maximum number of **restaurants** and/or **take-out restaurants**		1
6.2.2.20.4	Maximum **gross floor area - non-residential** for a **restaurant** and/or **take-out restaurant**		100 m^2
6.2.2.20.5	For the purposes of this By-law, all lands zoned C1-20 shall be considered one **lot**		
6.2.2.20.6	Minimum **rear yard**		2.8 m
6.2.2.20.7	Minimum **interior side yard**		3.0 m
6.2.2.20.8	Minimum **loading spaces**		0
6.2.2.20.9	Minimum depth of a landscaped buffer measured from all **lot lines**		3.0 m
6.2.2.20.10	"Landscaped Buffer" means a continuous, open, unobstructed width of land substantially parallel to and adjoining a **lot line** that is intended for the growth and maintenance of plant material including trees, shrubs and other landscape features such as retaining walls. The landscaped buffer may include signage and lighting and may be traversed by a **driveway**, walkway and/or utility easement.		

6.2.2.21	Exception: C1-21	Map # 47, 48E	By-law: 0237-2008, 0179-2018
In a C1-21 zone the permitted **uses** and applicable regulations shall be as specified for a C1 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.2.21.1	(1) **Dwelling units** located above the **first storey** of a commercial **building**		
Regulations			
6.2.2.21.2	The provisions of Lines 12.1, 12.2, 12.3 and 12.4 contained in Table 6.2.1 of this By-law shall not apply		
6.2.2.21.3	Maximum number of **dwelling units**		6
6.2.2.21.4	Minimum number of **parking spaces** per studio **dwelling unit**		1.00
6.2.2.21.5	Minimum number of **parking spaces** per one-bedroom **dwelling unit**		1.18
6.2.2.21.6	Minimum number of **parking spaces** per two-bedroom **dwelling unit**		1.36
6.2.2.21.7	Minimum number of **parking spaces** per three-bedroom **dwelling unit**		1.50
6.2.2.21.8	Minimum number of visitor **parking spaces** per **dwelling unit**		0.25
6.2.2.21.9	Minimum **loading spaces**		0
6.2.2.21.10	Minimum **landscaped area**		20% of the **lot area**

6.2.2.22	Exception: C1-22	Map #	By-law: 0228-2008, 0111-2019/LPAT Order 2021 March 09, *deleted by 0217-2023*

6.2.2.23	Exception: C1-23	Map #	By-law: 0110-2009, *deleted by 0111-2019/LPAT Order 2021 March 09*

6.2.2.24	Exception: C1-24	Map # 14	By-law: 0063-2012, 0103-2013, 0181-2018/LPAT Order 2019 February 15
In a C1-24 zone the permitted **uses** and applicable regulations shall be as specified for a C1 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.2.24.1	(1) Parking for **uses** on lands zoned C2-21		
Regulations			
6.2.2.24.2	**Condominium roads**, **driveways** and **aisles** are permitted to be shared with abutting lands zoned C2-21 and RA4-28		
6.2.2.24.3	Maximum **gross floor area - non-residential**		1 020 m^2
6.2.2.24.4	All site development plans shall comply with Schedule C1-24 of this Exception		



Schedule C1-24
Map 14